

# Smt Munugala Divya vs Mr Pendyala Vijay on 5 February, 2026

**Author: K.Lakshman**

**Bench: K.Lakshman**

THE HON'BLE SRI JUSTICE K.LAKSHMAN  
AND  
THE HON'BLE JUSTICE B.R.MADHUSUDHAN RAO  
I.A.NO.1 OF 2026  
IN/AND  
FAMILY COURT APPEAL NO.281 OF 2024  
Dated: 05.02.2026

XXXXX

... Appellant/Petitioner

Vs.

XXXXX

... Respondent/Respondent

COMMON JUDGMENT

(per the Hon'ble Sri Justice K.LAKSHMAN) Heard Smt.P.Bhavana Rao, learned counsel for the appellant and Ms.Sowmay Sanisetty learned counsel representing Sri Venkateswarlu Sanisetty learned counsel for the respondent.

2. Feeling aggrieved and dissatisfied with the order dated 21.10.2024 in FCOP.No.1224 of 2021 passed by the learned Additional Family Court, Ranga Reddy District, L.B.Nagar, appellant has preferred the present appeal.

3. Appellant is the wife and respondent is the husband. She has filed aforesaid FCOP.No.1224 of 2021 under Section 13(1)(i-a) and (iii) of the Hindu Marriage Act, 1955 seeking dissolution of marriage on the grounds of cruelty and unsound suffering from mental disorder. Vide impugned order learned Family Court has dismissed the said O.P.

4. During the pendency of the present appeal, both the parties have settled the disputes and they have decided to obtain decree of divorce with mutual consent. Therefore, they have filed an interlocutory application vide I.A.No.1 of 2016 to convert the divorce petition i.e., FCOP.No.1224 of 2021 into mutual consent divorce petition. They have also filed a copy of petition filed under Section 13-B of Hindu Marriage Act, 1955, before this Court.

5. Conversion of the aforesaid FCOP.No.1224 of 2021 into mutual consent divorce petition in the present case is impermissible. The parties have to file an application under Section 13(B) of the Hindu Marriage Act, 1955 before the jurisdictional Family Court seeking dissolution of marriage with mutual consent.

6. In the light of the same this application is disposed of granting liberty to the parties to file appropriate application under Section 13(B) of the Hindu Marriage Act, 1955 before the jurisdictional Family Court seeking dissolution of marriage with mutual consent. Liberty is also granted to parties to file an application seeking waiving of the six month period and it is for the Family Court to decide the same.

7. With the aforesaid directions this Appeal is also disposed of. There shall be no order as to costs.

As a sequel, the miscellaneous petitions pending, if any, shall stand closed.

----- J U S T I C E   K . L A K S H M A N  
----- JUSTICE B.R.MADHUSUDHAN RAO  
05.02.2026 Dua THE HON'BLE SRI JUSTICE K.LAKSHMAN AND THE HON'BLE JUSTICE  
B.R.MADHUSUDHAN RAO FAMILY COURT APPEAL NO.281 OF 2024 05.02.2026 Dua